

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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BOBBY LOPEZ and JASON PEREZ,
Plaintiffs,

Index No. 151467/2017

-against-

**AMENDED VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, DETECTIVE
PAUL RIVERA [SHIELD # 1283], P.O.
LOUIS DEFRANCO [SHIELD # 13579],
UC # 303, UC # 314, LIEUTENANT FABIAN
SANCHEZ [TAX REG. # 932211], P.O. JOSE
G. TAVERAS [SHIELD # 4870], JOHN DOE
and JANE DOE #1-4 (the names John and
Jane Doe being fictitious, as the true names
are presently unknown),
Defendants.

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Plaintiffs, BOBBY LOPEZ and JASON PEREZ, by their attorney, The Law Offices of
UGO UZOH, P.C., complaining of the defendants herein, The City of New York,
Detective Paul Rivera [Shield # 1283], P.O. Louis DeFranco [Shield # 13579], UC # 303,
UC # 314, Lieutenant Fabian Sanchez [Tax Reg. # 932211], P.O. Jose G. Taveras [Shield
4870], John Doe and Jane Doe #1-4 (collectively, "Defendants"), respectfully allege as
follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the
plaintiffs under color of statute, ordinance, regulation, custom, and/or to
redress the deprivation of rights, privileges, and immunities secured to the
plaintiffs by the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to
the Constitution of the United States, and by Title 42 U.S.C. § 1983, and
arising under the law and statutes of the City and State of New York.

COMPLIANCE WITH N.Y. GEN. MUN. LAW REQUIREMENTS

2. Plaintiffs timely made and served a notice of claim upon the defendants in
compliance with N.Y. Gen. Mun. Law § 50-e.

3. At least thirty days have elapsed since the service of aforesaid notice of claim and adjustment or payment thereof has been neglected or refused.
4. This action is commenced within one year and ninety days after the happening of the event(s) upon which the claim(s) is based.

THE PARTIES

5. Plaintiffs are and were at all times material herein residents of Manhattan, County, City and State of New York.
6. Defendant City of New York ("City") is a municipal corporation duly organized and existing under the laws of the State of New York.
7. The City of New York Police Department ("NYPD") is an agency of defendant City, and all officers referred to herein were at all times relevant to this complaint employees and agents of defendant City.
8. Defendant Detective Paul Rivera [Shield # 1283] was at all times material herein a detective employed by the NYPD. He is named here in his official and individual capacities.
9. Defendant P.O. Louis DeFranco [Shield # 13579] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
10. Defendant UC # 303 was at all times material herein an undercover police officer employed by the NYPD. UC # 303 is named here in his/her official and individual capacities.
11. Defendant UC # 314 was at all times material herein an undercover police officer employed by the NYPD. UC # 314 is named here in his/her official and individual capacities.
12. Defendant Lieutenant Fabian Sanchez [Tax Reg. # 932211] was at all times material herein a lieutenant employed by the NYPD. He is named here in his official and individual capacities.
13. Defendant P.O. Jose G. Taveras [Shield # 4870] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.

14. Defendants John Doe and Jane Doe #1-4 were at all times material herein individuals and/or officers employed by the NYPD. They are named here in their official and individual capacities.
15. Defendants Rivera, DeFranco, UC # 303, UC # 314, Sanchez, Taveras and John Doe and Jane Doe #1-4 are collectively referred to herein as “defendant officers”.
16. At all times material to this Complaint, the defendant officers acted toward plaintiffs under color of the statutes, ordinances, customs, and usage of the State and City of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

17. On August 16, 2016, at approximately 6:30 p.m., defendant officers, acting in concert, viciously assaulted and ultimately arrested Mr. Lopez without cause at or within the vicinity of the entrance door to the plaintiffs’ home which is located at 419 W 17th Street, New York, New York, and charged Mr. Lopez with N.Y. PL 221.35 ‘Criminal sale of marihuana in the fifth degree’ and PL 205.30 ‘Resisting arrest’.
18. Additionally, on August 16, 2016, at approximately 6:37 p.m., defendant officers, acting in concert, arrested and assaulted Mr. Perez without cause at aforesaid location, and charged Mr. Perez with N.Y. PL 221.10(1) ‘Criminal possession of marihuana in the fifth degree’.
19. At no time, however, did either plaintiff possess any marihuana, sell any marihuana, resist any arrest, or commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
20. According to defendant officers, they allegedly observed Mr. Lopez purportedly hand his older brother, Mr. Perez, multiple zip lock bags containing marihuana.
21. Additionally, according to defendant officers, they allegedly observed Mr. Perez holding a bag containing marihuana open to public view on a public sidewalk, which is a public place.
22. Further, according to defendant officers, they allegedly recovered 3 zip lock bags containing marihuana from Mr. Perez.

23. Lastly, according to defendant officers, Mr. Lopez allegedly resisted arrest and attempted to flee by pushing off defendant officers.
24. However, the entire encounter was captured on surveillance cameras.
25. Nothing in the videos supports defendant officers' false assertions.
26. At no time did Mr. Lopez hand his brother any marihuana or any zip lock bags.
27. Additionally, at no time did Mr. Perez hold or posses any marihuana or any bag containing marihuana.
28. As the video clearly depicts, defendant officers did not search Mr. Perez and did not recover any marihuana, zip lock bags containing marihuana, or any contraband from Mr. Perez.
29. Further, as the video clearly depicts, Mr. Lopez did not push off any individual or police officer, did not know that he was going to be arrested by any individual or police officer, and did not resist any arrest.
30. As the video clearly depicts, at approximately 6:29 p.m., plaintiffs took the ramp that led to the entrance of their apartment building with Mr. Perez pushing his bicycle as his brother's dog, Chico, tagged along.
31. Mr. Lopez did earlier run into his brother as he was walking the dog.
32. Mr. Perez at the time was returning from a visit to his girlfriend.
33. Mr. Lopez previously left the building at approximately 6:27 p.m., to walk the dog.
34. Plaintiffs eventually entered into the building with one of their neighbors and the dog.
35. At approximately 6:30 p.m., Mr. Perez entered into an elevator with their said neighbor and the dog.
36. Mr. Lopez who had planned to play basketball turned around and ran towards the front exit/entrance door to avoid being followed by the dog.
37. Upon exiting the door, Mr. Lopez observed multiple individuals in street clothes (who turned out to be defendant officers) heading towards the door.
38. Mr. Lopez while facing the street with his back turned towards the door held the door open with his right hand.

39. Defendant officers who had just entered into the building abruptly turned around and rushed towards Mr. Lopez.
40. Upon hearing what appeared to be multiple individuals aggressively rushing towards him, Mr. Lopez quickly turned to find out what was going on.
41. As soon as Mr. Lopez turned around, defendant officers immediately wrapped their arms around his neck area and held on to him, and forcibly lifted Mr. Lopez up and pushed him forward flipping him up in the air.
42. Defendant officers then violently slammed Mr. Lopez down to the floor.
43. Mr. Lopez fell approximately fifteen feet from the top of the entrance door landing to the bottom of a concrete 3 step riser located in front of the building.
44. Defendant officers who are stockily and strongly built and seem to weigh several pounds more than Mr. Lopez who is slightly built, landed on top of Mr. Lopez.
45. Essentially, defendant officers forcibly grabbed Mr. Lopez and slammed him down to the concrete floor as if they were engaged in a professional wrestling match.
46. It is clear from the videos that Mr. Lopez did not have any opportunity to react to defendant officers' assault and actions and/or defend himself.
47. Mr. Lopez was rendered unconscious, and was caused to sustain serious injuries on various parts of his body including, but not limited to, basilar skull fracture, traumatic subdural hematoma and pneumothorax.
48. Shortly after the vicious assault, Mr. Perez overheard someone yell in front of their apartment door that his younger brother needed help in the front courtyard.
49. At approximately 6:36 p.m., Mr. Perez exited the building pushing his bicycle.
50. Upon observing his brother knocked out unconscious and surrounded by several unknown individuals in street clothes, Mr. Perez repeatedly inquired as to what happened to his brother.
51. Defendant officers did not respond to Mr. Perez's inquiries.

52. As he kept wondering aloud as to what happened to his brother, Mr. Perez indicated that his brother was doing fine when he left him a few minutes before he came back downstairs.
53. As soon as Mr. Perez indicated that he and his brother were together prior to the assault, defendant officers rushed towards Mr. Perez.
54. Defendant officers forcibly grabbed Mr. Perez and tightly handcuffed him with his hands placed behind his back.
55. Defendant officers then instructed Mr. Perez to sit down on the ground.
56. Mr. Perez sat down as he was instructed.
57. Shortly thereafter, defendant officers grabbed Mr. Perez by his arms, pulled him up from the ground and led him to their police vehicle forcibly pulling him by his right arm.
58. Defendant officers then transported Mr. Perez to NYPD-10th Precinct for arrest processing.
59. While at the precinct, defendant officers subjected Mr. Perez to an illegal and warrantless search.
60. Defendant officers' illegal and warrantless search did not yield any contraband.
61. Nonetheless, defendant officers still detained Mr. Perez.
62. After detaining Mr. Perez for a lengthy period of time at the precinct, defendant officers caused a legal process to be issued to Mr. Perez requiring him to appear in the criminal court on October 11, 2016.
63. Eventually, defendant officers met with prosecutors employed by New York County District Attorney's Office.
64. During this meeting, defendant officers falsely stated to the prosecutors, among other things, that they allegedly observed Mr. Perez holding a bag containing marihuana open to public view on a public sidewalk, which is a public place, and that they allegedly recovered 3 zip lock bags containing marihuana from Mr. Perez.
65. Based on the false testimony of defendant officers, the prosecutors initiated criminal actions against Mr. Perez.

66. On October 11, 2016, Mr. Perez appeared in the criminal court as he was directed but was advised that a new court date would be sent to him by mail within 60 days.
67. Mr. Perez was further advised that he should consider the case against him dismissed if he did not receive a new court date within 60 days.
68. Eventually, Mr. Perez learned that the prosecutors declined to prosecute him on or about September 21, 2016.
69. Despite Mr. Lopez's injuries, defendant officers did not immediately call for emergency services, and delayed Mr. Lopez's medical care and treatment.
70. Eventually, Mr. Lopez was transported to the hospital where he was admitted for several days.
71. While at the hospital, Mr. Lopez was handcuffed and shackled to the bed despite the fact that he sustained life threatening injuries.
72. Defendant officers also subjected Mr. Lopez to an illegal and warrantless search.
73. Defendant officers' illegal and warrantless search did not yield any contraband.
74. Nonetheless, defendant officers still detained Mr. Lopez.
75. While Mr. Lopez remained at the hospital awaiting arraignment, defendant officers met with prosecutors employed by New York County District Attorney's Office.
76. During this meeting, defendant officers falsely stated to the prosecutors, among other things, that Mr. Lopez sold marihuana to his brother, resisted arrest and attempted to flee by pushing off defendant officers.
77. Based on the false testimony of defendant officers, the prosecutors initiated criminal actions against Mr. Lopez.
78. On or about August 19, 2016, Mr. Lopez was transported from the hospital directly to Central Booking for arraignment.
79. Upon arraignment, Mr. Lopez was released on his own recognizance but was required to return to the criminal court on October 11, 2016, to defend the false charges levied against him by defendant officers.

80. Shortly after his arraignment on August 19, 2016, Mr. Lopez was rushed by Emergency Management Services to another hospital where he was readmitted, and was forced to undergo emergency life saving surgery necessitating the removal of a part of his skull.
81. Mr. Lopez subsequently appeared before the criminal court to defend the false charges levied against him by defendant officers.
82. On or about November 21, 2016, the false charges levied against Mr. Lopez were summarily dismissed.
83. Mr. Lopez graduated from high school in the summer of 2016, and was offered admission by LaGuardia Community College.
84. Mr. Lopez had applied for financial aid and was taking steps to enroll in the college.
85. Mr. Lopez, who is or was very good at basketball, was also looking forward to making the school's basketball team.
86. Because of the assault, Mr. Lopez was unable to enroll in the college and may no longer be able to further his education.
87. Moreover, Mr. Lopez no longer plays basketball, and has been advised by his treating physicians to refrain from engaging in contact sports or strenuous activities.
88. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the assault knew and was fully aware of the assault and had a realistic opportunity to intervene to prevent the serious harm detailed above from occurring.
89. Nonetheless, defendants did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to protect and ensure the safety of the plaintiffs.
90. As a result of the aforesaid actions by defendants, plaintiffs suffered and continue to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, loss of rights to familial association, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: FALSE ARREST - against defendant officers

91. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 90 of this complaint as though fully set forth herein.
92. The conduct of defendant officers, as described herein, amounted to false arrest.
93. Such conduct violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.
94. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: EXCESSIVE USE OF FORCE - against defendant officers

95. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 94 of this complaint as though fully set forth herein.
96. The conduct of defendant officers, as described herein, amounted to excessive use of force.
97. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.
98. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRD CAUSE OF ACTION: FAILURE TO INTERVENE - against defendant officers

99. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 98 of this complaint as though fully set forth herein.
100. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiffs did not

commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.

101. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.

102. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

103. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION: UNREASONABLE DETENTION - against defendants

104. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 103 of this complaint as though fully set forth herein.

105. Defendant officers denied the plaintiffs their due process rights to be free from continued detention after it was or should have been known that the plaintiffs were entitled to release.

106. The conduct of defendant officers, as described herein, amounted to unreasonable detention.

107. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

108. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION: FABRICATION OF EVIDENCE AND DENIAL OF RIGHT TO A FAIR TRIAL - against defendant officers

109. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 108 of this complaint as though fully set forth herein.

110. Defendant officers manufactured evidence of criminality against the plaintiffs which the prosecutors relied upon to initiate criminal action against the plaintiffs.
111. The conduct of defendant officers, as described herein, amounted to fabrication of evidence and denial of right to a fair trial.
112. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eight and Fourteenth Amendments to the United States Constitution.
113. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION: UNLAWFUL STOP AND FRISK - against defendant officers

114. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 113 of this complaint as though fully set forth herein.
115. The conduct of defendant officers, as described herein, amounted to unlawful stop and frisk.
116. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eight and Fourteenth Amendments to the United States Constitution.
117. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTH CAUSE OF ACTION: UNREASONABLE SEARCH & SEIZURE - against defendant officers

118. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 117 of this complaint as though fully set forth herein.
119. Defendant officers subjected plaintiffs to unreasonable search & seizure.

120. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

121. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHTH CAUSE OF ACTION: MALICIOUS PROSECUTION - against defendant officers

122. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 121 of this complaint as though fully set forth herein.

123. The conduct of defendant officers, as described herein, amounted to malicious prosecution.

124. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

125. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

NINTH CAUSE OF ACTION: DELIBERATE INDIFFERENCE - against defendant officers

126. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 125 of this complaint as though fully set forth herein.

127. Despite Mr. Lopez's injuries, defendant officers did not immediately call for emergency services, and delayed Mr. Lopez's medical care and treatment.

128. Defendant officers denied Mr. Lopez treatment needed to remedy his serious medical conditions and did so because of their deliberate indifference to Mr. Lopez's need for medical treatment and care.

129. Such conduct described herein violated Mr. Lopez's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.

130. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TENTH CAUSE OF ACTION: CONSPIRACY - against defendant officers

131. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 130 of this complaint as though fully set forth herein.
132. In an effort to find fault to use against the plaintiffs who are Hispanics, defendant officers met with themselves and with several other individuals on numerous occasions and agreed to deprive the plaintiffs of their constitutional rights secured by 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eight and Fourteenth Amendments to the United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
133. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eight and Fourteenth Amendments to the United States Constitution.
134. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of defendant officers, individually and severally.

ELEVENTH CAUSE OF ACTION: FAILURE TO TRAIN/SUPERVISE/DISCIPLINE/SCREEN AND MUNICIPAL POLICY - against defendant City

135. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 134 of this complaint as though fully set forth herein.
136. Defendant City of New York, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to

effect an arrest only when probable cause exists for such arrest. In addition, defendant City had actual and/or de facto policies, practices, customs and/or usages of failing to properly screen its prospective police officers for mental fitness, history of misconduct, good moral character and propensity for violence.

137. Further, defendant City of New York, acting through Cyrus R. Vance, Jr. and the Office of the District Attorney of the New York County, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise, and discipline its Assistant District Attorneys and employees concerning correct practices in conducting investigations, interviewing witnesses and informants, assessing the credibility of witnesses and informants, the initiation and/or prosecution of criminal actions, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and the duty and/or obligation of candor toward the court.
138. Defendant City of New York, acting through aforesaid NYPD and District Attorney, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiffs, who are Hispanics, on the pretext that they were involved in drugs and/or other illicit activities.
139. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
140. In its report of investigations ("report") into NYPD use of force dated October 1, 2015, the New York City Department of Investigation, Office of the Inspector General for the NYPD, ("DOI"), concluded that "[h]istorically, NYPD has frequently failed to discipline officers who use force without justification." Police Use of Force in New York City: Findings and Recommendations on NYPD's Policies and Practices, at 2-3,

http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf (last visited February 2, 2018).

141. Additionally, DOI concluded that “NYPD’s current use-of-force policy is vague and imprecise, providing little guidance to individual officers on what actions constitute force.” *Id.* at 3.
142. Further, DOI concluded that “NYPD Lacks a Uniform Policy on Reporting Force Incidents” and determined that NYPD training is inadequate and that more focused training is required. *Id.* at 23, 39-44.
143. As the inspector general, Philip K. Eure, recently stated, the NYPD lives “a little bit in the dark ages with respect to its use-of-force policies.” The New York Times, Bratton, Tracking Police Use of Force, Aims to Stay Step Ahead of Watchdogs, <https://www.nytimes.com/2015/10/02/nyregion/bratton-tracking-police-use-of-force-aims-to-stay-step-ahead-of-watchdogs.html> (last visited February 2, 2018).
144. Indeed, the assault against Mr. Lopez is reminiscent -- although much worse -- of several recent NYPD use of force incidents including the high-profile arrests of James Blake, a retired professional tennis player, and Thabo Sefolosha, a professional basketball player with the Atlanta Hawks.
145. In addition to the named individual defendants, several officers of the NYPD assigned to NYPD-Narcotics Borough Manhattan South (NBMS) -- as defendant officers -- routinely make unlawful arrests charging innocent persons with various crimes and/or offenses.
146. Most of the arrests and charges made by officers assigned to NYPD-NBMS are usually voided and/or dismissed by prosecutors for lack of evidence.
147. Defendant City has settled numerous lawsuits brought in this court and in the federal courts against several officers including officers assigned to NYPD-NBMS alleging excessive use of force and similar charges as those described herein. *See, e.g., Hernandez v. City of New York* (16 CV 537); *Evelyn Gomez v. City of New York* (15 CV 7293); *Clovis Seltzer v. City of New York* (15 CV 1456); *Khadijah Watkins v. City of New York* (14 CV 8108); *Maurice Culp v.*

City of New York (13 CV 6913); *Tony Holley v. City of New York* (12 CV 6354); *Janina Jones v. City of New York* (11 CV 7043); *Nancy Smith v. City of New York* (10 CV 9331); *Francis Poku v. City of New York* (10 CV 3429); *Shamekka Crump v. City of New York* (10 CV 1152); *Valentine Moseley v. City of New York* (09 CV 6463).

148. That defendant City of New York maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City of New York acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiffs' injuries as described herein.
149. The actions of defendants, acting under color of State law, deprived plaintiffs of their due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in their persons and properties, to be free from abuse of process, the excessive use of force and the right to due process.
150. By these actions, defendants have deprived plaintiffs of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

TWELFTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12 - against defendants

151. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 150 of this complaint as though fully set forth herein.
152. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiffs without probable cause or reasonable suspicion, and harassing and assaulting them and depriving them of due process and equal protection of laws, defendants deprived plaintiffs of rights, remedies, privileges, and

immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.

153. In addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiffs of their constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
154. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.
155. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiffs' state constitutional rights.

THIRTEENTH CAUSE OF ACTION: TORTS (FALSE ARREST/IMPRISONMENT) - against defendants

156. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 155 of this complaint as though fully set forth herein.
157. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment.
158. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTEENTH CAUSE OF ACTION: TORTS (ASSAULT AND BATTERY) - against defendants

159. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 158 of this complaint as though fully set forth herein.
160. By reason of and as a consequence of the conduct of defendant officers, plaintiffs sustained serious injuries with the accompanying pain.
161. The conduct of the defendants, as described herein, amounted to assault and battery.
162. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTEENTH CAUSE OF ACTION: TORTS (MALICIOUS PROSECUTION) - against defendants

163. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 162 of this complaint as though fully set forth herein.
164. Based on the false testimony of defendants, the prosecutors initiated criminal actions against the plaintiffs.
165. Plaintiffs were required to, and did, appear in court to defend themselves from the false charges levied against them with malice by defendants.
166. The prosecutors subsequently declined to prosecute Mr. Perez.
167. On or about November 21, 2016, the false charges levied against Mr. Lopez were summarily dismissed.
168. Because of the conduct of the defendants, plaintiffs were maliciously prosecuted for a lengthy period of time.
169. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTEENTH CAUSE OF ACTION: TORTS (UNREASONABLE SEARCH AND SEIZURE) - against defendants

170. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 169 of this complaint as though fully set forth herein.
171. The conduct of the defendants, as described herein, amounted to degrading, humiliating and unreasonable search and seizure, and unreasonable detention.
172. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTEENTH CAUSE OF ACTION: TORTS (NEGLIGENCE AND/OR BREACH OF SPECIAL DUTY OR RELATIONSHIP) - against defendants

173. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 172 of this complaint as though fully set forth herein.
174. Defendants failed to properly care, supervise and protect the plaintiffs, failed to ensure the plaintiffs' health and safety, and were careless and negligent in their treatment of the plaintiffs.
175. Because of defendants' failures, Mr. Lopez may no longer be able to pursue his further education and may no longer be gainfully employed.
176. The conduct of the defendants, as described herein, amounted to negligence and breach of special duty or relationship.
177. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHTEENTH CAUSE OF ACTION: TORTS (DEFAMATION) - against defendants

178. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 177 of this complaint as though fully set forth herein.
179. Defendants falsely alleged that the plaintiffs were, among other things, in possession of marihuana, sold marihuana and resisted arrest.

180. On or about August 16, 2016, defendants published their aforesaid false allegations to plaintiffs' colleagues, neighbors, friends and family including, but not limited to, Amelia Martinez.
181. The above statements by the defendants were made without any just cause or truth to the statements. Additionally, defendants made such statements maliciously, knowing said statements to be absolutely false.
182. Defendants made aforesaid false and malicious statements with the sole intent of exposing plaintiffs to public contempt, hatred, ridicule, aversion, disgrace and to induce an evil opinion of the plaintiffs and cause plaintiffs to be shunned or avoided and injure plaintiffs in their employment or occupation.
183. By reason of defendants' statements and actions, plaintiffs have been injured in their good name and reputation and have suffered and continue to suffer great pain and mental anguish and have been held and continue to be held in ridicule and contempt by their family members, neighbors, colleagues, friends, acquaintances and the public.
184. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

NINETEENTH CAUSE OF ACTION: TORTS (NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS) - against defendants

185. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 184 of this complaint as though fully set forth herein.
186. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiffs.
187. Plaintiffs' emotional distress has damaged their personal and professional lives because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the arrest, assault, detention, imprisonment and defamation by defendants.

188. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TWENTIETH CAUSE OF ACTION: NEGLIGENT HIRING, TRAINING, SUPERVISION AND RETENTION OF EMPLOYMENT SERVICES - against defendant City

189. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 188 of this complaint as though fully set forth herein.
190. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiffs to prevent the physical and mental abuse sustained by plaintiffs.
191. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiffs because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiffs or to those in a like situation would probably result from such conduct described herein.
192. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.
193. Upon information and belief, defendant City's negligence in hiring, training, supervising and retaining defendant officers proximately caused plaintiffs' injuries.

DAMAGES

194. That by reason of the foregoing, Plaintiffs BOBBY LOPEZ and JASON PEREZ have been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

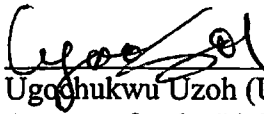
WHEREFORE, plaintiffs respectfully pray judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;

- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiffs' reasonable attorney's fees; and;
- d. For such other and further relief as the court deems proper.

Dated: Brooklyn, New York
August 6, 2018

UGO UZOH, P.C.

By: 
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To:

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New York, New York 10007

Detective Paul Rivera [Shield # 1283]
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UC # 314
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Lieutenant Fabian Sanchez [Tax Reg. # 932211]
c/o Karen Kirshenbaum, Senior Counsel
100 Church Street
New York, New York 10007

P.O. Jose G. Taveras [Shield # 4870]
NYPD-Narcotics Borough Manhattan South (NBMS)
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
BOBBY LOPEZ and JASON PEREZ,
Plaintiffs,

Index No. 151462/2017

-against-

ATTORNEY'S
VERIFICATION

THE CITY OF NEW YORK, DETECTIVE
PAUL RIVERA [SHIELD # 1283], P.O.
LOUIS DEFRANCO [SHIELD # 13579],
UC # 303, UC # 314, LIEUTENANT FABIAN
SANCHEZ [TAX REG. # 932211], P.O. JOSE
G. TAVERAS [SHIELD # 4870], JOHN DOE
and JANE DOE #1-4 (the names John and
Jane Doe being fictitious, as the true names
are presently unknown),
Defendants.

-----X
Ugochukwu Uzoh, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

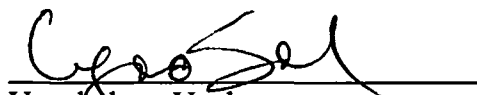
I am of the firm of UGO UZOH, P.C., the attorneys of record for the plaintiffs.

I have read the foregoing Amended Complaint and know the contents thereof, the same is
true of my own knowledge except as to matters therein stated to be alleged on information and
belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by the plaintiffs because plaintiffs do not
reside in Kings County, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiffs, information contained in the said plaintiffs'
file(s), which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Brooklyn, New York
August 6, 2018


Ugochukwu Uzoh

**THE SUPREME COURT OF THE
STATE OF NEW YORK, NEW YORK COUNTY**

AT AN IAS PART ____ OF THE SUPREME COURT
OF THE STATE OF NEW YORK, NEW YORK COUNTY,
BOROUGH OF MANHATTAN, CITY OF NEW YORK
ON THE ____ DAY OF ____, 20__

BOBBY LOPEZ and JASON PEREZ,
Plaintiffs,

-against-

**THE CITY OF NEW YORK, DETECTIVE
PAUL RIVERA [SHIELD # 1283], P.O.
LOUIS DEFRANCO [SHIELD # 13579],
UC # 303, UC # 314, LIEUTENANT FABIAN
SANCHEZ [TAX REG. # 932211], P.O. JOSE
G. TAVERAS [SHIELD # 4870], JOHN DOE
and JANE DOE #1-4 (the names John and
Jane Doe being fictitious, as the true names
are presently unknown),**
Defendants.

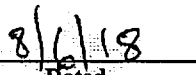
AMENDED SUMMONS

&

VERIFIED COMPLAINT

CERTIFICATION: I hereby certify that all papers that I have
served, filed or submitted to the court in the within action are not
frivolous pursuant to Sec. 130-1.1a of the Rules of the Chief
Administrator (22NYCRR)


Ugo Uzoh, P.C.


Dated

Ugo Uzoh, P.C.

Attorneys for plaintiffs
Office & Post Office Address

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